

STANDING ORDER NO. 253/2010

GUIDELINES REGARDING RECORDING OF DYING DECLARATIONS

I. INTRODUCTORY

1. A dying declaration is a statement made by a person before his death relating to the cause of his death or the circumstances of the events which might later result in his death. Such a statement is admissible, in evidence u/s 32(1) of the Indian Evidence Act in cases in which the cause of that person's death comes into question. The relevancy of the statement depends upon two questions:-
 - a) When the statement is made by a person as to the cause of his death.
 - b) When the statement is made by a person as to any of the circumstances of the transaction, which resulted in his death.
2. It is not necessary that the statement to be admissible must always be made immediately before the death or when the deceased is inching towards his death or under the expectation of death. The circumstances as disposed by the deceased even long before his death, are relevant and as such admissible if they bear proximate relation to any transaction which at a later stage resulted in his death.

II. PROCEDURE TO BE FOLLOWED

The procedure for recording dying declarations is given in P.P.R. 25.21 which states as follows:-

1. A dying declaration shall, whenever possible be recorded by the magistrate.
2. The person making the declaration shall, if possible, be examined by a medical officer with a view to ascertaining that he/she is in conscious state and good mental condition to make a statement.
3. If no Magistrate can be contacted/is available, the declaration shall, when a gazetted police officer is not present, be recorded in the presence of two or more reliable witnesses unconnected with the police department and with the parties concerned in the case.
4. If no such witnesses can be obtained with risk of the injured person dying before his statement can be recorded, it shall be recorded in the presence of two or more police officers.
5. A dying declaration made to a police officer should be signed by the person making it.

It is necessary that IOs should be fully aware of it. In terms of evidentiary value, dying declarations are of extremely vital importance. Hence correct procedure in getting the same recorded must be followed. A police officer should keep the following points in view while recording a dying declaration:-

- i) Dying declarations may be oral or written. A police officer should always bear a distinction between oral and written declaration. As far as possible, a dying declaration should be invariably recorded.
- ii) The declaration should be recorded soon after the occurrence as far as possible under the circumstances of the case.
- iii) It should be unambiguous and clear and not vague or discrepant.
- iv) It should be made to a proper person i.e. Magistrate, Doctor, Gazetted Police Officer, any police officer in the presence of the doctor or two or more reliable witnesses unconnected with the police department and parties concerned with the case. If no such witnesses can be obtained without risk of the injured person dying before his statement can be recorded, it shall be recorded in the presence of two police officials.
- v) There should be no chance of the deceased being led into making the statement by interested persons. It should be ensured that such a statement is not tainted/colored nor should it be allowed to be tutored or prompted by anyone or appear to be product of imagination.
- vi) The individual has to be in his senses while making the statement and should be able to speak (the extent of inquiries will help in determining this). Opinion and verification of the medical officer concerned must be obtained in writing indicating that the deceased was in his senses to make a lucid statement i.e. the victim was in conscious state and good mental condition and was under sedative effect of medicines.
- vii) It has to be ascertained and confirmed that the power of observation of the deceased was not affected and he had seen the accused.
- viii) It is always better if arrangements can be made to get the statement recorded by a magistrate (Judicial/SDM). In the case of married women being burnt within 7 years of their marriage, the presence of the Magistrate is very important. Once the Magistrate is present the police officer should remove himself from the room. However, If such a Magistrate is not available and the condition of the witness is critical, the statement may be got recorded by a Special Executive Magistrate who should not be in police uniform. However, a Special Executive Magistrate be called only if all efforts to procure the presence of an SDM/Judicial Magistrate have failed and if the condition of the victim is such that the recording of the dying declaration cannot be delayed.

This must, however, happen in rarest of the rare cases only. Even in such a case, other police officers should be removed from the room. However, the Special Executive Magistrate must ensure the presence of a medical officer and, if possible, some other public person available other than the victim's attendants and if none is available other than the victim's attendants and if none is available then the victim's attendants as witnesses while he is recording the statement.

- ix) The statement of the doctor must be recorded or endorsement obtained who should state that the individual is fit for making a statement. After the statement has been recorded, the statement of the doctor must again be recorded that the patient remained fit to give a statement throughout the duration during which the statement was made.
- x) If witnesses are not available and there is risk of the injured collapsing, the police officer should write the declaration himself in the presence of other police officers and the medical officer. The person present at the time of recording dying declaration and the deceased should also sign the statement put his/her or thumb impression on it. The police officer recording the statement should sign and give date and time of recording it.
- xi) If the dying declaration is based on the statement of the deceased, mention should always be made of the persons present when the police officer recorded it. The relatives of the injured with those present should also be mentioned i.e. father, mother, brother, cousin, friend, neighbour etc.
- xii) The dying declaration should, as far as possible, always be recorded in the words / language of the deceased.
- xiii) A dying declaration may be made by signs or gestures when the injured is unable to speak. In such cases all the signs, nods, motion of figures etc. in answers to questions must be mentioned clearly for interpretation by the Court.
- xiv) Dying declaration should be videographed in a single shot if feasible. The videographer would then be a witness in the case.
- xv) Dying declaration must identify the accused by names.
- xvi) Instruction should also be issued to Doctors to record a dying declaration while there was no time to call the police official or Magistrate.
- xvii) The person who records the statement/dying declaration would certify that the statement was recorded correctly with bonafide intention and without any pressure having been exerted by him on the maker of the

statement. In case patient/victim was unable to sign or put the thumb impression on the statement due to injuries, then official concerned should obtain thumb impression of foot.

III. COURT RULINGS

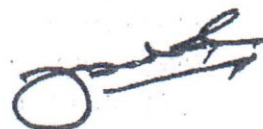
The Hon'ble Supreme Court of India in a Crl. Appeal No. 966 of 2009 titled "Sasi Kumar Vs. State of Tamil Nadu" observed that "Though a dying declaration is entitled to great weight. It is worthwhile to note that the accused has no power of cross-examination. Such a power is essential for eliciting the truth as an obligation of oath could be. This is the reason the Court also insists that the dying declaration should be of such nature as to inspire full confidence of the Court in its correctness. The Court has to be on guard that the statement of the deceased was not as a result of either tutoring or prompting or a product of imagination. The Court must be further satisfied that the deceased was in a fit state of mind after a clear opportunity to observe and identify the assailant. Once the Court is satisfied that the declaration was true and voluntary, undoubtedly, it can base its conviction without any further corroboration. It cannot be laid down as an absolute rule of law that the dying declaration cannot form the sole basis of conviction unless it is corroborated. The rule requiring corroboration is merely a rule of prudence. This Court has laid down in several judgments the principles governing dying declaration, which could be summed up as under as indicated in **Smt. Paniben Vs. State of Gujarat (AIR 1992 SC 1817)**.

- (i) There is neither rule of law nor of prudence that dying declaration cannot be acted upon without corroboration. {See Munnu Raja & Anr. Vs. The State of Madhya Pradesh (1976) 2 SCR 764}}
- (ii) If the Court is satisfied that the dying declaration is true and voluntary it can base conviction on it, without corroboration { See State of Uttar Pradesh Vs. Ram Sagar Yadav and Ors. (AIR 1985 SC 416) and Ramavati Devi Vs. State of Bihar (AIR 1983 SC 164)}
- (iii) The Court has to scrutinize the dying declaration carefully and must ensure that the declaration is not the result of tutoring, prompting or imagination. The deceased had an opportunity to observe and identify the assailants and was in a fit state to make the declaration {See K. Ramachandra Reddy and Anr. Vs. The Public Prosecutor (AIR 1976 SC 1994)}.
- (iv) Where the dying declaration is suspicious, it should not be acted upon without corroborative evidence. {See Rasheed Beg Vs. State of Madhya Pradesh (1974 (4) SCC 264)}
- (v) Where the deceased was unconscious and could never make any dying declaration, the evidence with regard to it is to be rejected. {See Kaka Singh Vs. State of M.P.(AIR 1982 SC 1021)}

- (vi) A dying declaration which suffers from infirmity cannot form the basis of conviction. {See Ram Manorath and Ors. Vs. State of U.P. (1981 (2) SCC 654)}
- (vii) Merely because a dying declaration does contain the details as to the occurrence, it is not to be rejected. {See State of Maharashtra Vs. Krishnamurthi Laxmipati Naidu (AIR 1981 SC 617)}
- (viii) Equally, merely because it is a brief statement, it is not to be discarded. On the contrary, the shortness of the statement itself guarantees truth. {See Surajdeo Oza and Ors. Vs. State of Bihar (AIR 1979 SC 1505)}
- (ix) Normally the Court in order to satisfy whether the deceased was in a fit mental condition to make the dying declaration looks up to the medical opinion. But where the eye-witness said that the deceased was in a fit and conscious state or make the dying declaration, the medical opinion cannot prevail. {See Nanahau Ram and Anr. Vs. State of Madhya Pradesh (AIR 1988 SC 912)}
- (x) Where the prosecution version differs from the version as given in the dying declaration, the said declaration cannot be acted upon. {See State of U.P. Vs. Madan Mohan and Ors. (AIR 1989 SC 1519)}
- (xi) Where there is more than one statement in the nature of dying declaration, one first in point of time must be preferred. Of course, if the plurality of dying declarations could be held to be trustworthy and reliable, it has to be accepted. {See Mohanlal Gangaram Gehani Vs. State of Maharashtra (AIR 1982 SC 839) and Mohan Lal and Ors. Vs. State of Haryana (2007 (9) SCC 151)}

IV. SUPERSESSION CAUSE

This supersedes S.O. No. 253 issue vide No. 3032-3192/C&T. AC-III, dated 13.2.78 and subsequently amended and issued vide No. 23368-568/C&T/XXV/131/Spl/AC-II dated 11.4.89.



(Yudhbir Singh Dadwal)
Commissioner of Police
Delhi

O.B.NO.01/RB/PHQ DATED 22.2.2010

No.01-250/RB/PHQ, dated Delhi the 22.2.2010.